

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

EALYTEX GLOBAL INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent*.

DOCKET NO. 26-08

Served: July 23, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

SCHEDULING ORDER

On July 21, 2026, the parties filed a Joint Status Report (“JSR”) and proposed discovery and briefing schedule. In the JSR, the parties indicate that they made initial disclosures and have been in contact with CADRS. (JSR, at 1). Regarding discovery, the JSR contemplates completion of all discovery, including expert discovery, no later than December 3, 2026, which is 150 days after the Answer was filed. (JSR, at 1). Although the parties state that they are optimistic that discovery can be completed within 150 days, they note that discovery may go longer. The parties also indicate that they do not anticipate needing more than the number of depositions and interrogatories generally permitted under the Commission’s Rules. (JSR, at 1).

To make the discovery process more efficient, the parties are encouraged to agree to limitations on discovery and stipulations of facts. The parties are also encouraged to review the Initial Order for instructions related to confidential information. For example, parties may not mark entire depositions as confidential, so they should ask questions that may require confidential responses together, typically at the end of the deposition.

Under normal circumstances, cases such as these are resolved following briefing, and the parties have proposed a briefing schedule. I have set forth the agreed-upon briefing schedule below. Complainant requested that a hearing be held in the matter. (*See* Verified Amended Complaint, at 25). Pursuant to 46 C.F.R. § 502.62(a)(5), “[t]he presiding officer will determine whether an oral hearing is necessary.” At this point in the proceeding, it is not clear that there is reason to conduct an oral hearing – accordingly, the Complainant’s request is **DENIED WITHOUT PREJUDICE**.

Upon reviewing the JSR, I find that the proposed agreed-upon cases schedule is reasonable, and contemplates the completion of discovery within 150-days of the Answer. (*See* 46 C.F.R. § 502.141(g)). Accordingly, the parties are hereby **ORDERED** to follow this schedule:

August 3, 2026	Parties may serve initial discovery requests
October 5, 2026	Substantial completion of productions of documents and ESI in response to initial RFP; depositions may begin
October 19, 2026	Disclosure of Complainant's expert reports, if any
October 21, 2026	Last day parties may serve supplemental discovery requests
November 13, 2026	Complete depositions of fact witnesses
November 24, 2026	Disclosure of Respondent's rebuttal expert reports, if any
December 3, 2026	Close of Discovery
January 14, 2027	Complainant's initial brief, proposed findings of fact, and appendix
February 16, 2027	Respondent's opposition brief, responses to Complainant's proposed findings of fact, proposed findings of fact, and appendix
March 2, 2027	Complainant's reply and responses to Respondent's proposed findings of fact

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” (*Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985))). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” (*Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983)). The authority of courts to control their dockets is well settled. (*Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998)).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

Parties must follow the instructions in the Initial Order, including the requirements for submitting confidential information.

Parties may be required to refile any documents that do not follow the requirements above or in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word-processing versions should not be submitted to the Office of the Secretary.

Richard C. Ambrow Jr -
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Richard Ambrow
Administrative Law Judge